

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ja'Quawn Turner	Team: Squad #04	CCRB Case #: 202306282	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Wednesday, 07/05/2023 3:36 AM, Wednesday, 07/05/2023 3:55 AM	Location of Incident: Davidson Avenue and West 190th Street; 52nd Precinct stationhouse	18 Mo. SOL 1/5/2025	Precinct: 52		
Date/Time CV Reported Mon, 07/10/2023 12:53 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/10/2023 12:53 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Brandon Easter	14063	971917	052 PCT
2. Officers			
3. PO Justin Larocchia	10656	970653	052 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . Officers	Force: At Davidson Avenue and West 190th Street in the Bronx, officers used physical force against § 87(2)(b)	A . Unfounded
B . Officers	Force: At Davidson Avenue and West 190th Street in the Bronx, officers used physical force against § 87(2)(b)	B . Unfounded
C . PO Justin Larocchia	Discourtesy: At Davidson Avenue and West 190th Street in the Bronx, Police Officer Justin Larocchia spoke discourteously to § 87(2)(b)	C . Substantiated
D . PO Justin Larocchia	Off. Language: At Davidson Avenue and West 190th Street in the Bronx, Police Officer Justin Larocchia spoke offensively regarding § 87(2)(b) actual or perceived disability.	D . Substantiated
E . PO Brandon Easter	Abuse: At the 52nd Precinct stationhouse, Police Officer Brandon Easter did not obtain medical treatment for § 87(2)(b)	E . Miscellaneous

Case Summary

On July 10, 2023, § 87(2)(b) filed this complaint with the CCRB by phone.

On July 5, 2023, at approximately 3:36AM, § 87(2)(b) was riding on his moped and stopped to observe officers from the 52nd Precinct arresting people on the sidewalk of Davidson Avenue and West 190th Street in the Bronx. Officers allegedly tackled § 87(2)(b) off his moped (**Allegation A: Force, Unfounded**). Officers allegedly kicked and punched § 87(2)(b) while he was on the ground (**Allegation B: Force, Unfounded**). § 87(2)(b) was handcuffed. PO Justin Larocchia, from the 52nd Precinct, escorted § 87(2)(b) to a police van. PO Larocchia told § 87(2)(b) “Get in the fucking van and stop acting like a fucking retard” (**Allegation C: Discourtesy, Substantiated**) (**Allegation D: Offensive Language, Substantiated**). § 87(2)(b) was taken to the 52nd Precinct stationhouse. § 87(2)(b) allegedly asked PO Brandon Easter, from the 52nd Precinct, for medical attention and PO Easter allegedly ignored § 87(2)(b) request (**Allegation E: Abuse of Authority, Miscellaneous – Subject Terminated**).

§ 87(2)(b) was arrested and charged with criminal possession of a weapon in the fourth degree and refusal to take a breath test administered by a police officer (**BR 01**).

There were 34 videos related to this incident (**BR 02**).

Findings and Recommendations

Allegation (A) Force: At Davidson Avenue and West 190th Street in the Bronx, officers used physical force against § 87(2)(b)

Allegation (B) Force: At Davidson Avenue and West 190th Street in the Bronx, officers used physical force against § 87(2)(b)

§ 87(2)(b) stated that he was riding on his moped when an officer tackled him off his moped. Five to seven officers then piled on top of § 87(2)(b). Officers that he did not recall punched and kicked § 87(2)(b). § 87(2)(b) blacked out and, when he woke up, he was in a police van (**BR 03**).

PO Larocchia stated that he was responding to a 311 call along with other officers. The officers noticed a party with approximately 15 to 20 people present taking place at Davidson Avenue and West 190th street. PO Larocchia and the officers were dispersing the crowd when § 87(2)(b) drove down the road on a moped. An officer proceeded to arrest § 87(2)(b). PO Larocchia was close by and approached to assist in arresting § 87(2)(b). § 87(2)(b) was handcuffed (**BR04**).

PO Larocchia’s BWC video shows that he is standing off to the side. § 87(2)(b) is on a moped and stops, says, “El Capitan,” and smiles. An officer in a white shirt approaches § 87(2)(b) and puts his hand on the arm bars of the moped. At the 04:49 time stamp, § 87(2)(b) tries to pull back away from the officer. PO Larocchia and other officers then rush to assist in arresting § 87(2)(b). At the 04:52 time stamp, PO Larocchia grabs § 87(2)(b) left arm and wrist and wrestles his hands behind his back. § 87(2)(b) asks what the officers are doing. An officer responds, “Didn’t I tell you to stop?” § 87(2)(b) continues to ask what the officers are doing. At the 05:06 time stamp, four officers remove § 87(2)(b) off his moped. At the 05:10 time stamp, PO Larocchia is heard speaking to § 87(2)(b) and commenting multiple times, “Not the smartest thing to do.” § 87(2)(b) responds that he was just passing by. PO Larocchia responds, “I know, I know. You just need to get a legitimate vehicle when you pass by the police, bro.” § 87(2)(b) is searched and moved from the street at the 06:06 time stamp to a police van (**BR05**).

According to Patrol Guide Procedure 221-01, “Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody” (BR 06).

§ 87(2)(g) BWC footage shows that officers approached § 87(2)(b) pulled him off his moped, handcuffed him, and walked him over to a police van without incident. BWC footage that officers did not shove § 87(2)(b) to the ground nor punched or kicked him. Therefore, it is recommended that Allegation A and Allegation B be closed as **Unfounded**.

Allegation (C) Discourtesy: At Davidson Avenue and West 190th Street in the Bronx, Police Officer Justin Larocchia spoke discourteously to § 87(2)(b)

Allegation (D) Offensive Language: At Davidson Avenue and West 190th Street in the Bronx, Police Officer Justin Larocchia spoke offensively regarding § 87(2)(b) actual or perceived disability.

These allegations were pleaded because they were captured on BWC footage.

PO Larocchia’s BWC video shows that § 87(2)(b) is moved from the street to a police van at the 06:06 time stamp. At the 06:15 time stamp, § 87(2)(b) trips while walking. PO Larocchia comments, “You really wanna try that? How stupid could you be? You really wanna try that?” At the 06:48 time stamp, as PO Larocchia is attempting to get § 87(2)(b) into the van, PO Larocchia is heard saying, “I’m not playing these fucking games.” § 87(2)(b) yells that he was not getting in the “fucking van.” PO Larocchia shoves § 87(2)(b) into the van and says, “get in the fucking van.” At the 6:54 time stamp, PO Larocchia gets into the van. § 87(2)(b) is seen with the upper half of his body lying face down on one of the back seats. PO Larocchia stands over him and yells, “Sit the fuck down like a goddamn adult and stop being a fucking retard!” (BR 05)

PO Larocchia was shown the abovementioned BWC video during his CCRB interview. Regarding the, “how stupid you gotta be?” comment, PO Larocchia stated that he asked this because § 87(2)(b) was flailing and being uncooperative to commands. Regarding the, “get in the fucking van,” comment, PO Larocchia stated that the situation at the time was intense, and he was attempting to articulate the urgency to § 87(2)(b) while also getting him to comply. Regarding calling § 87(2)(b) a “fucking retard,” PO Larocchia explained that he simply meant that he wanted § 87(2)(b) to start acting like an adult and to listen to the officers and get in the van. PO Larocchia felt § 87(2)(b) actions were foolish at that time (BR 04)

According to the NYPD Mission, Vision, and Values, NYPD officers must “Respect the dignity of each individual and render our services with courtesy and civility” (BR 07).

PO Larocchia is clearly heard in his BWC video referring to § 87(2)(b) as a “fucking retard,” § 87(2)(g) it is recommended that Allegation C and Allegation D be closed as **substantiated**.

Allegation (E) Abuse of Authority: At the 52nd Precinct stationhouse, Police Officer Brandon Easter did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) stated that he was transported to the 52nd Precinct stationhouse and placed inside a cell. § 87(2)(b) was bleeding from his legs due to the impact of being tackled during the incident. § 87(2)(b) requested medical attention from PO Easter because he feared that his wound could get infected. PO Easter never got § 87(2)(b) medical attention. § 87(2)(b) went to the hospital by himself once he was released from police custody (**BR 03**).

PO Easter was listed as § 87(2)(b) arresting officer (**BR 01**).

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation E** be closed as **Miscellaneous – Subject Terminated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 10**).
- PO Justin Larocchia has been a member of service for three years and has been a subject in one CCRB complaint and two allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of September 19, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**BR12**).
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming damages for deprivation of liberty, mental and psychological pain and suffering, embarrassment, humiliation, physical pain and suffering, and punitive damages, and diverse general and special damages, and damages under 42 USC SEC. 1983, including reasonable attorney's fees and costs and seeking 1,000,000 as redress (**BR14**). A 50H hearing has not been scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 4

Investigator:	<u>Inv. JaQuawn Turner</u> Signature	<u>Inv. JaQuawn Turner</u> Print Title & Name	<u>09/30/2024</u> Date
Squad Leader:	<u>Raquel Velasquez</u> Signature	<u>IM Raquel Velasquez</u> Print Title & Name	<u>09/30/2024</u> Date

Squad No.: 4 _____

Reviewer: _____
Signature Print Title & Name Date